

**Tentative Rulings**  
September 22, 2026  
Department S-17  
Judge Joseph Ortiz

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Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or [www.courtcall.com](http://www.courtcall.com)), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

**ATTENTION:** Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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15. *San Bernardino Co. Transp. Authority v. Mahdavi, et al*, CIVSB2203375  
Attorney Morris's Motion to be Relieved as Attorney for Defendant Rassoul Mahdavi  
9/22/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion relating to representation of Defendant Rassoul Mahdavi, Trustee of the Family Trust of Rassoul Mahdavi. The motion is supported by a declaration establishing an actual conflict of interest and breakdown in communication constituting good cause. (Morris Decl.) The Court would also order the at-issue Defendant to appear before the Court at the next OSC re representation scheduled for October 6, 2026 at 8:30 AM and inform the Court about the status of representation and defense of the case. The relief is not effective until service of the ruling has been effectuated and proof of service has been filed.

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16. *Raggio v. Kelly's Market, et al*, Case No. CIVSB2601306  
Defendant's Motion for Judgment on the Pleadings  
9/22/26, 9:00 a.m., Dept. S-17

### ***Tentative Rulings***

As to Objections: The Court would find Defendant's objections to the Rivera declaration **MOOT**.

As to the Request for Judicial Notice: The Court would **GRANT** notice of measurement conversion of 3mm to 0.11811 inches, as not being reasonably subject to dispute. However, the Court would **DENY** as to the internet search results regarding measurement conversion and thickness of a quarter.

As to the Motion: The Court would **GRANT**, with thirty (30) days' leave to amend.

### ***Case Summary***

This is a slip-and-fall personal injury case. On November 22, 2024, Plaintiff tripped and fell over exposed metal bolts protruding approximately three millimeters from the concrete sidewalk in front of Defendant's store entrance, adjacent to the outdoor seating area. As such, Plaintiff filed suit on January 14, 2026, alleging (1) premises liability and (2) general negligence.

### ***Summary of the Law***

A party may bring a motion for judgment on the pleadings after filing an answer and the time to demurrer has expired. (Code Civ. Proc., § 438(b)(1) & (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.) If the moving party is the defendant, then a motion for judgment on the pleading (JOP) is limited to the grounds that the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. (Code Civ. Proc., § 438(c)(1)(B).) The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. (Code Civ. Proc., § 438(d).)

### ***Analysis***

Defendant Market contends that the Complaint does not state facts sufficient to constitute a cause of action against it. (Code Civ. Proc., § 438(c)(1)(B)(ii).) The chief argument concerns Plaintiff's allegation